

HOUSE No. 334

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan and Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act investigating the economic impact of certain Massachusetts laws.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/9/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>1/9/2025</i>

HOUSE No. 334

By Representative Chan of Quincy and Senator Moore, a joint petition (accompanied by bill, House, No. 334) of Tackey Chan and Michael O. Moore for legislation to establish a special commission (including members of the General Court) to investigate the potential for beneficial economic impact from minimum pricing laws. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 263 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act investigating the economic impact of certain Massachusetts laws.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) Notwithstanding any general or special law to the contrary, there is hereby created
2 a commission that shall investigate the potential for beneficial economic impact from the
3 Commonwealth’s minimum pricing laws and determine, if appropriate, whether certain
4 minimum pricing should be adjusted to better assist small businesses within the Commonwealth.

5 (b) The commission shall consist of the secretary of the executive office of administration
6 and finance or his designee; the director of the department of agriculture or his designee; the
7 treasurer or her designee; the house and senate chairs of the joint committee on revenue, who
8 shall co-chair the commission; a representative of the Retailers Association of Massachusetts; a
9 representative of the National Federation of Independent Business Massachusetts; a

representative appointed by the Governor from each of the industries currently impacted by minimum pricing laws, including the dairy, alcohol and tobacco industries; an individual an individual with an expertise in finance or consumer economics; a representative of a statewide public health organization engaged in tobacco cessation efforts; a representative of a statewide public health organization engaged in alcohol cessation or recovery efforts; a representative of a wholesaler engaged in the distribution of tobacco, alcohol or dairy products and a representative of the New England's Convenience Stores and Energy Marketers as appointed by the Governor. The commission shall adopt rules and establish procedures it considers necessary for the conduct of its business. No action of the commission shall be considered official unless approved by a majority vote of the commission members.

(c) In the course of its investigation, the commission shall: (1) examine the minimum pricing laws in existence in the Commonwealth; (2) examine the minimum pricing laws in existence in the Commonwealth's neighboring states, if any; (3) provide an analysis of the impact of the Commonwealth's minimum pricing laws on the cost and price of products so regulated; (4) provide an analysis of the impact of the neighboring states' minimum pricing laws on the cost and price of products so regulated; and (5) develop recommendations as to whether certain of the Commonwealth's minimum pricing laws should be adjusted to assist small businesses within the Commonwealth.

(d) The commission may hold public hearings to assist in the collection and evaluation of data and testimony.

(e) Any research, analysis or other staff support that the commission reasonably requires shall be provided by the executive office of administration and finance and its agencies.

32 (f) The commission shall prepare a written report detailing its findings and
33 recommendations, together with drafts of legislation, as may be necessary to carry those
34 recommendations into effect. The commission shall submit its initial report to the governor, the
35 secretary of the executive office of administration and finance, the clerks of the senate and house
36 of representatives, the chairs of the house and senate committees on ways and means and the
37 joint committee on revenue not later than 1 year after the effective date of this act.